

CITIIBANK N.A. vs. GLADINEJOSELL C. LOPEZ
Case No. CL25-09107

Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

Plaintiff's filings do not include a proof of service for the motion.

**CHRISTIAN IBARRA; ET AL. vs. CALIFORNIA DEPARTMENT OF
TRANSPORTATION; ET AL.**
Case No. CU24-01023

Demurrer to Third Amended Complaint

TENTATIVE RULING

Defendant Aecom Technical Services, Inc.'s unopposed demurrer to Plaintiff's third amended complaint is sustained without leave to amend.

JANE CRUZ vs. JPMORGAN CHASE BANK, N.A.
Case No. CU24-09312

Motion to Compel Further Responses

TENTATIVE RULING

Before moving to compel further responses to requests for production, the propounding party must first engage in meet and confer efforts over those responses. C.C.P. §2031.310(b)(2) [requiring a motion to compel further responses to be accompanied by a meet and confer declaration].

C.C.P. §2016.040(a) requires a meet and confer declaration to "state facts showing a reasonable and good faith attempt either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."

A propounding party must make every reasonable effort to informally resolve disputes over served responses, before filing a motion to compel further responses.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. Obregon v. Superior Court (1998) 67 Cal.App.4th 424 [factors to be considered include the complexity of the discovery issues, the past history

of the counsel on prior disputes, and to a certain extent, the judge's gut feeling; sending one brief letter 13 days prior to the deadline to file a motion to compel further responses did not constitute a sufficient "meet and confer" attempt].

The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the "irreducible minimum" before asking the court to resolve them. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026), §8:1159, p. 67; See also Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1281, quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 ["'informal resolution' of discovery disputes 'entails something more than bickering with (opposing counsel).' Rather, the statute 'requires that there be a serious effort at negotiation and informal resolution.'"]

While Plaintiff's counsel adequately met and conferred as to Request for Production No. 9 and Special Interrogatory No. 1 prior to the filing of this motion, Defendant served further responses to the other six discovery requests at issue before this motion was filed, and Plaintiff's counsel undertook no new meet and confer efforts after receiving those further responses. The service of those further responses started a new 45-day deadline to file a motion to compel even further responses to those further responses.

The motion is therefore denied as to Requests for Production 1, 7, and 11-14.

The motion is also denied as to Requests for Production No. 9 and Special Interrogatory No. 1. Defendant served further responses around the time of filing opposition to this motion, to trigger a new 45-day deadline and a new duty on the part of Plaintiff's counsel to meet and confer, over those further responses.

The service of those amended responses to the latter two discovery requests did not necessarily render moot Plaintiff's request for monetary sanctions. However, noting the inclusion in this motion of the other six discovery requests, and Plaintiff's deposition cancellations of the employee witnesses identified in Defendant's responses to the other two discovery requests, the court finds that other circumstances weigh against the imposition of any sanctions.

SMIRETH SWEET vs. MICHAEL GUNN
Case No. CU26-01273

Motion for Trial Preference

TENTATIVE RULING

Parties are to appear, with Plaintiff expected to explain her claim of monthly expenses in Solano County exceeding \$8,300, despite her other claims that she is no longer employed (and thus not commuting on a daily basis to Santa Clara County), as well as her latest admissions that she is receiving child support biweekly of over \$5,000; and